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|     |                                                                      | <p>default for failing to make any of the required payments since October 8, 2024 and the sum of \$72,730.46 remains due and unpaid to Plaintiff. (Id. ¶ 9.) Plaintiff's files reflect that Defendant resides at 15543 Rayen Street, #28, North Hills, California 91343 and to the best of Plaintiff's knowledge, that is the current location of the subject vehicle. (Id. ¶ 13.)</p> <p>Plaintiff has established the probable validity of prevailing on its claim to possession of the subject vehicle. Thus, Plaintiff's Application for Order for Writ of Possession is GRANTED. The Court finds that Defendant has no interest in the subject vehicle and therefore waives the requirement of Plaintiff's undertaking. (Code Civ. Proc., § 515.010(b).)</p> <p>The Case Management Conference is continued to August 27, 2026 at 1:30 p.m.</p> <p><i>Moving party to give notice.</i></p> |
| 102 | Daniels vs. Balderas, 25-01515105                                    | <i>Continued to July 30, 2026 at 1:30 p.m. No further briefing allowed.</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 103 | Alpine Equipment Funding, Inc. vs. Guerra, 23-01328771               | <i>Continued to July 30, 2026 at 1:30 p.m. No further briefing allowed.</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 104 | Foroughi vs. Mercedes-Benz USA, LLC, 25-01535962                     | <i>Continued to September 17, 2026 at 1:30 p.m. No further briefing allowed.</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 105 | Zhejiang Zheshang Asset Management Co., Ltd. vs. Xinwen, 23-01367893 | <i>Continued to September 10, 2026 at 1:30 p.m. No further briefing allowed.</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 106 | Revelo De Rosales vs. American Honda Motor Co., Inc., 24-01444493    | <p>Defendant AMERICAN HONDA MOTOR CO., INC. ("AHM") seek an order compelling Plaintiffs to produce their 2023 Honda Ridgeline, VIN: 5FPYK3F88PB062437 for inspection and non-destructive testing at Buena Park Honda located at located at 6411 Beach Blvd., Buena Park, CA 90621 within 14-days. AHM seeks monetary sanctions against Plaintiffs and/or their counsel of record Prestige Legal Solutions, P.C. in the amount of \$2,028.00 pursuant to CCP § 2023.010 subd. (d) and 2031.300 subd. (c) for failing to produce the Subject Vehicle for inspection.</p> <p>Defendant American Honda Motor Co., Inc. seeks an order compelling the deposition of Plaintiff MARTA E. REVELO DE ROSALES ("Plaintiff") pursuant to CCP §§ 2025.450, subdivision (a), and 2025.480, subdivision (a), for an order compelling Plaintiff's deposition within 7-days. AHM seeks</p>                      |

monetary sanctions against Plaintiff MARTA E. REVELO DE ROSALES and/or Plaintiff's counsel of record Prestige Legal Solutions, P.C. in the amount of \$2,069 pursuant to CCP §§ 2023.030 and 2025.450 subdivision (g)(1) for failing to produce Plaintiff for deposition.

Defendant American Honda Motor Co., Inc. ("AHM") seeks order compelling the deposition of Plaintiff FRANCIS O. ROSALES ("Plaintiff") pursuant to CCP §§ 2025.450, subdivision (a), and 2025.480, subdivision (a), for an order compelling Plaintiff's deposition within 7-days, all as shown in the supporting declaration. AHM seeks monetary sanctions against Plaintiff FRANCIS O. ROSALES and/or Plaintiff's counsel of record Prestige Legal Solutions, P.C. in the amount of \$2,069 pursuant to CCP §§ 2023.030 and 2025.450 subdivision (g)(1) for failing to produce Plaintiff for deposition.

#### VEHICLE INSPECTION

Here, Plaintiff represents that the Defendant's Motion is moot, because the parties have agreed to an inspection of the vehicle on 8/18/2026. (Decl. of Dias ¶ 8.) Notably, trial is set to commence on 8/31/2026 and the failure to complete this vehicle inspection has already resulted in one trial continuance. See ROA 60. To that end, despite representations that the vehicle inspection will occur, the Court hereby orders that it occurs on 8/18/2026. The Court also orders sanctions against Plaintiff and Plaintiff's counsel, in the amount of \$798 to be paid within 20 days. It should not take nine (9) months (11/11/2025 Demand served) and a trial continuance to schedule a vehicle inspection, when the vehicle is the primary issue in the case.

#### DEPOSITIONS:

Defendant cites to CCP § 2025.450 and CCP § 2025.480 as authority for the requested relief.

Here, on October 22, 2025, AHM noticed the deposition of Plaintiff Marta E. Revelo De Rosales (Rein Decl. ¶ 2.) Apparently because Defendant unilaterally set the deposition, Plaintiffs objected and requested a meet and confer as to available dates. (Dias Decl. ¶ 2.) Despite several inquiries about dates by Defendants, Plaintiff did not provide dates until 7/2/2026. As of today's date, this Court is still in the dark as to whether the depositions actually occurred, or will occur.

To the extent they have not, the Court orders Plaintiffs' deposition to take place within 20 days.

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|-----|--------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|     |                                                                          | <p>Sanctions are warranted against Plaintiffs and Counsel of Record, joint and severally, in the amount of \$839. While Attorney Dias declares, "Any delay in scheduling was therefore the result of confirming Plaintiff's availability and the transition of handling counsel—not any refusal to participate in discovery"—this excuse is simply not adequate. Plaintiffs have caused delay in this case and caused more law and motion work by all involved, including the Court.</p> <p><i>Defendant to provide notice.</i></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 107 | Jarvis Restoration vs. State Farm Fire and Casualty Company, 25-01455700 | <p>Defendant, State Farm General Insurance Company ("State Farm"), moves to strike the claim for punitive damages at paragraphs 52, 58, 59, 60, and in the Prayer at paragraph 5 of Plaintiff, Jarvis Restoration's Second Amended Complaint.</p> <p>State Farm asserts that the factual allegations in the First Amended Complaint and Second Amended Complaint ("SAC") are the same, and that Plaintiff added 11 new paragraphs, paragraphs 50-60, which consist of conclusory allegations, and allegations on information and belief that it "believes" State Farm is malicious, oppressive and/or fraudulent, but that Plaintiff does not allege actual facts, and that Plaintiff's belief, unsupported by facts, is not sufficient to allege a claim for punitive damages which requires factual allegations. State Farm also asserts that Plaintiff still does not identify any officer, director or managing agent who "authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice" in the SAC, and that because there are no facts on which Plaintiff could truthfully or in good faith plead that would entitle Plaintiff to punitive damages, this motion should be granted with prejudice.</p> <p>Plaintiff, Jarvis Restoration ("Plaintiff" or "Jarvis") contends that the SAC adds targeted, specific factual allegations that describe a coordinated, company-wide practice of denying all Assignment of Benefits ("AOB") based appraisal demands, approved and directed at the officer and management level, undertaken with actual knowledge that such denials were unlawful, and motivated by a deliberate financial strategy to sidestep appraisal obligations on claims State Farm had underpaid. Plaintiff asserts that these added allegations address the deficiencies identified in the First Amended Complaint, that the allegations on information and belief are grounded in the facts alleged in the SAC, and that the motion should be denied as the SAC pleads specific facts establishing malice and oppression.</p> <p>Here, Plaintiff alleges that State Farm's denial of the Appraisal Demand submission on the grounds that the partial AOBs were invalid, in contravention to California Insurance Code section 520 and California case law providing that an</p> |